The examination is being carried out on the **following application documents**

Description, Pages

1-40	as published	

Claims, Numbers

1-15	filed in electronic form on	15-09-2020

Drawings, Sheets

1/26-26/26	as published	

Reference is made to the following documents; the numbering will be adhered to in the rest of the procedure.

D1 US 2014/243894 A1 (GROOTHUIS ADAM [US] ET AL) 28 August 2014 (2014-08-28)

D2 US 2011/060407 A1 (KETAI TED [US] ET AL) 10 March 2011 (2011-03-10)

D3 US 2001/016725 A1 (VALLEY KIRSTEN L [US] ET AL) 23 August 2001 (2001-08-23)

D4 US 5 879 499 A (CORVI TIMOTHY J [US]) 9 March 1999 (1999-03-09)

D5 US 2015/057687 A1 (GITTARD SHAUN DAVIS [US] ET AL) 26 February 2015 (2015-02-26)

1 Novelty and Inventive Step (Art. 52(1), 54 and 56 EPC)

1.1 Independent claims

The present application does not meet the requirements of Article 52(1) EPC because the subject-matter of at least an independent claim is not new or inventive within the meaning of Article 54(1) and (2) EPC or Article 56 EPC, respectively, as argued in detail below.

1.1.1 ***Regarding claim 1***, document **D1** discloses:
A delivery system for an implant along a tissue wall in a patient, the system comprising:

a first catheter (100) having a proximal and distal end, wherein the first catheter includes **a first lumen** (120, fig.7d) extending therethrough for passage of a guidewire (120 is suitable for passage of a guidewire), wherein the first catheter further includes:
a magnetic head (126 fig.7d §62ff) along a distal portion thereof,
a penetrating guidewire (wire 60a,160a,260a) advanceable through **a second lumen** (fig.7d, §64: "*According to other embodiments, as illustrated in FIG. 7d, the wire (160a) tracks along a side or off-centered axial lumen (122b) of the wire delivery catheter (120) and, upon crossing the tricuspid annulus (3), the distal end (162) of the wire (160a) enters the right ventricle (4).*", see also the embodiments in figs.17-21 with §85 disclosing further multi-lumen catheters) of the first catheter, wherein the penetrating guidewire has a **sharpened distal** end to facilitate penetration of tissue (§67: "*The distal end (162, 262) of the wire (160, 260) remains inside the right ventricle (4). In some embodiments, the wire (160, 260) has a piercing tip which allows it to perforate the tricuspid annulus (3)*");
an anchor (310,610, §71: "*FIGS. 11c and 12c illustrate an exemplary deployment of the tissue anchor (310a) positioned at the location (32) according to the embodiment described in association with FIGS. 2-9, where the tissue anchor tracks along the wire (60a, 160a, 260a*)") releasably coupled with the first catheter along the distal portion thereof (before extending from the distal portion of the first catheter, the anchor is coupled with the catheter as it is within its lumen and on the wire); and
a bridging element (tensile 608 §93, fig.20) attached to the posterior anchor at one end and attached to the penetrating guidewire at an opposite end such that advancement of the penetrating guidewire through the second lumen and across the tissue wall facilitates advancement of the bridging element across the tissue wall (fig.17-19, in particular fig.19a-b, disclose to catheters with two separate wires, over each wire an anchor is placed as disclosed in §87: "*as illustrated in FIG. 18b, two wires are placed at two locations, which can be used to facilitate the deployment of two tissue anchors (310a), following the steps discussed above and in accordance with FIGS. 11a-11c.*", wherein these anchors are connected by the tensile 608. Thus, a first anchor is connected to the tensile, wherein another end of the tensile is connected to the second anchor and couples this corresponding second wire to the first anchor).

The subject-matter of the above mentioned claim is therefore **not new** (Article 54(1) and (2) EPC).

1.1.2 For the sake of completeness, the applicant is advised that each of the following documents also renders the subject-matter of claim 1 **not inventive**:

D2: fig.39J §140ff. for a multilumen catheter (catheter 3966 with lumen 3975,3965), with a penetrating guidewire (3980,3915), an anchor 3910 and a bridging element (3920) (§136ff.) between the anchor and guidewire. **D2 does not disclose** the catheter (3966) to be magnetic, however, providing a magnetic portion to provide increased guidability and detection of the catheter to solve such a problem of how to improve guidability is not inventive but known in the art and disclosed in e.g. **D3** §190 or **D4** c.31 l.54ff.
The subject-matter is therefore not inventive.

1.2 **Dependent claims**

1.2.1 **Novelty:** The subject-matter of the following dependent claims is, as well, not new within the meaning of Article 54(1) and (2) EPC.

1.2.1.1 *Regarding claim 15*, see **D1** as for claim 1 and the objection on clarity below: interpreting that any of the specifies features could be facultative, **D1** as least discloses the magnetic head to be configured for coupling with another such head, strain relief portions given by the fabric material, the anchor being distal to the magnetic head after being advanced there beyond.

2 **Clarity, Conciseness and Support (Art. 84 EPC)**

The application does not meet the requirements of Article 84 EPC for the following reasons.

2.1 *Regarding claim 15*, the claim specifies "any combinations thereof". This specification and the resulting subject-matter is not clear. Does it mean that any of the previous features are to be considered entirely facultative and resulting in the subject-matter of the claim merely comprising one of the specified features?

3 **Further remarks**

If the application is prosecuted, the above objections as well as the following shortcomings shall be dealt with and the **applicant is asked to provide the necessary modifications with the next filing** in order to accelerate the procedure:

3.1 In order to facilitate the examination of the conformity of the amended application with the requirements of Article 123(2) EPC, the applicant is requested to clearly identify the amendments carried out, irrespective of whether they concern amendments by addition, replacement or deletion, and to indicate the passages of the application as filed on which these amendments are based (Rule 137(4) EPC). EPC GL H-III.2.1 specifies that when filing

amendments, the applicant must identify them and indicate the basis for them in order to enable the division to assess compliance of the amendments with the provisions of Art. 123(2). Based on this section of the guidelines (EPC GL H-III. 2.1) the examining division requests that such **amendments have to be indicated with respect to the application as filed**. The requirement to indicate amendments should be understood as an opportunity for the applicant to **provide convincing arguments to the division as to why the amendment(s) is/are directly and unambiguously derivable from the application as filed**. These arguments are particularly important for the outcome of the division's assessment of Art.123(2) EPC where literal support for the amendment(s) is not present in the application as filed. The applicant is informed that the requirement that the basis for amendments be indicated is met if, on consulting those parts of the application indicated, it is not necessary to look further in order to assess the amendment's compliance with Art. 123(2) EPC. If this requirement is not met, the applicant might be invited in a further communication to remedy such a deficiency within a non-extendable period of one month based on Rule 137(4) EPC. The applicant is therefore asked to exactly indicate the basis and to refrain from too general indications to sets of paragraphs and/or figures.

3.2 Any new independent claim should be properly cast in two-part form, with in its pre-characterising portion the features disclosed in the closest prior art (Rule 43(1) EPC, see the decision of the Board of Appeal T13/84).

3.3 Reference signs should be used throughout the claims (Rule 43(7) EPC).

3.4 The description will have to be brought into line with the new claims (Rule 42(1) (c) EPC). This includes removing all references to "inventions" or "embodiments" which do not fall within the scope of the claims.

3.5 The closest prior art should be indicated in the description (Rule 42 (1) (b) EPC).

3.6 The unit "inch" employed in the description is not recognised in international practice/generally used, contrary to the requirements of Rule 49(10) EPC. The corresponding SI unit value needs to be inserted in brackets thereafter.

3.7 In order to assess the question of inventive step, the applicant is asked to indicate in the response which technical problem is solved by the characterising features of the new independent claim compared to the closest prior art (Rule 42(1)(c) EPC).

The applicant is reminded that when arguing on a particular effect such an effect must be provided by merely the features present in the claim as otherwise essential features will be missing, see EPC GL F-IV.4.5.2: "*Essential features of a claim are those necessary for achieving a technical effect underlying the solution of the technical problem with which the application is concerned*".